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TENTATIVE ORDER

Defendant Luis Linares's unopposed motion for terminating sanctions against Plaintiffs Rosa Romero, Anna Crespin, and Victor Castillo is DENIED without prejudice.

Moving party to give notice.

Defendant Luis Linares (Defendant) moves for an order granting terminating sanctions against Plaintiffs Rosa Romero, Anna Crespin, and Victor Castillo (collectively, Plaintiffs).

Defendant also seeks an order dismissing Plaintiffs' complaint pursuant to Code of Civil Procedure (CCP) sections 2023.030(d).

Background

On September 27, 2022, Plaintiffs filed the instant action against Defendant and Does 1 through 100, inclusive, asserting four causes of action: (1) Strict Liability; (2) Negligence; (3) Premises Liability; and (4) Vicarious Liability.

On March 10, 2026, the Court granted Defendant's motion to compel Plaintiffs to serve responses to Form Interrogatories, Set One. The Court ordered Plaintiffs to serve verified code-compliant responses to Form Interrogatories, Set One, without objections by March 30, 2026. The Court denied Defendant's request for sanctions.

On March 11, 2026, the Court granted Defendant's motion to compel Plaintiffs to serve responses to Demand for Production of Documents, Set One. The Court ordered Plaintiffs to serve verified code-compliant responses to Demand for Production of Documents, Set One, without objections by April 1, 2026 and to produce the documents, electronically stored information, and other things requested in Demand for Production of Documents, Set One, without objections by April 1, 2026. The Court denied Defendant's request for sanctions.

On July 10, 2026, Defendant filed the instant motion for terminating sanctions against Plaintiffs.

Plaintiffs filed an opposition on July 30, 2026. Plaintiffs' opposition was due on or before July 21, 2026. (Code Civ. Proc., § 1005, subd. (b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days"].) Accordingly, the opposition is untimely and the Court declines to consider it in its tentative ruling.

Legal Standard

Where a party willfully disobeys a discovery order, courts have discretion to impose terminating, issue, evidence, or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g), 2025.450, subd. (h); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) An evidence sanction prohibits a party that misused the discovery process from introducing evidence on certain designated matters into evidence. (Code Civ. Proc., § 2023.030, subd. (c).) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (*Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) "[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith." (*Brown v. Sup. Ct.* (1986) 180 Cal.App.3d 701, 707.) The court may impose a terminating sanction by one of the following orders:

- (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.
- (2) An order staying further proceedings by that party until an order for discovery is obeyed.
- (3) An order dismissing the action, or any part of the action, of that party.
- (4) An order rendering a judgment by default against that party.

(Code Civ. Proc., § 2023.030, subd. (d).)

Analysis

Defendant argues that terminating sanctions are warranted because Plaintiffs failed to comply with the Court's March 10 and March 11, 2026 orders requiring objection-free, verified responses to Defendant's Form Interrogatories and Requests for Production of Documents, and because Plaintiffs thereafter refused to participate in the meet-and-confer process. (Motion, p. 3.)

As discussed above, the Court granted Defendant's motions to compel and ordered Plaintiffs to serve objection-free, verified responses by March 30, 2026 and April 1, 2026. (3/10/2026 & 3/11/2026 Minute Orders.) The Court also ordered Defendant to give notice of the rulings and file proofs of service within five days. (*Ibid.*) Defendant served notice of the rulings that same day and filed the corresponding proofs of service on March 19, 2026. (Nason Decl., ¶ 4; 3/19/2026 Notices of Ruling.)

On May 7, 2026, Defendant's counsel emailed Plaintiffs' counsel regarding the overdue discovery responses. (Nason Decl., ¶ 5, Ex. A.) Defendant's counsel followed up again on May 8, 2026 and June 3, 2026. (*Id.* at ¶¶ 6–7, Exs. B–C.) According to Defendant's counsel, Plaintiffs have not served any responses to the outstanding discovery requests. (*Id.* at ¶ 9.)

Plaintiffs were personally served with the instant motion on July 10, 2026, but have not filed an opposition. In addition, at the June 4, 2026 Status Conference Re: Mediation, Defendant advised the Court that it had filed a unilateral declaration in lieu of a joint status report because Plaintiffs had been nonresponsive, and mediation could not be scheduled for the same reason. (6/4/2026 Minute Order.)

The record therefore reflects that Plaintiffs have failed to comply with the Court's discovery orders and have remained unresponsive despite Defendant's repeated efforts to obtain compliance.

Nevertheless, the Court finds that terminating sanctions are not warranted at this time. The Court's March 10 and March 11, 2026 orders did not impose monetary sanctions or any other lesser sanctions for Plaintiffs' discovery violations.

As the court explained in *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604, "a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." Under the circumstances presented here, the Court concludes that terminating sanctions are premature because lesser sanctions have not yet been attempted.

Accordingly, the Motion for Terminating Sanctions is DENIED.

Although the Court finds that Plaintiffs have disregarded the Court's discovery orders, the Court declines to impose monetary sanctions in connection with the instant motion because Defendant did not request such relief or provide notice of the amount sought. This ruling is without prejudice to Defendant seeking monetary or other appropriate discovery sanctions through a properly noticed motion.

Conclusion

Based on the foregoing, Defendant Luis Linares's unopposed motion for terminating sanctions against Plaintiffs Rosa Romero, Anna Crespín, and Victor Castillo is DENIED without prejudice to Defendant seeking monetary or other appropriate discovery sanctions through a properly noticed motion.